SYSTEM ANNOTATED REFERENCE CONTRACT 04: PERSONAL ARTIST MANAGEMENT AGREEMENT

> SYSTEM METADATA & EVALUATION HEADER
> - Document ID: SYS-ANNOT-04
> - Contract Type: management (Exclusive Personal Artist Management Agreement)
> - Jurisdiction: KE (Republic of Kenya)
> - Counterparties: Elevate Talent Management Limited ("Manager") and Amina Wanjiru p/k/a "Mina W." ("Artist")
> - Primary Reference Standards Cited:
> - KECOBO-MGMT-STD-01: Kenya Copyright Board (KECOBO) Advisory Copyright Contract Manual · Personal Artist Management Agreement Standard (CC BY 4.0 / Statutory Guidance)
> - WIPO-MGMT-STD-01: WIPO How to Make a Living from Music & Music Managers Forum (MMF) Fair Management Standard (CC BY 4.0)
> - Overall Risk Profile: Exploitative Personal Management Agreement (Teaches the system how to evaluate 25% Commission on Gross Income without deducting live/touring/recording budgets vs. 15%·20% Commission, Perpetual Post-Term Sunset Commissions, Uncapped Expense Reimbursement, Manager Bank Account Control + Irrevocable Power of Attorney, and Absence of a Key-Man Clause.)

PREAMBLE AND RECITALS

THIS EXCLUSIVE PERSONAL ARTIST MANAGEMENT AGREEMENT (this "Agreement") is made on the 7th day of December, 2026 (the "Effective Date") between ELEVATE TALENT MANAGEMENT LIMITED, of Rose Avenue, Kilimani, P.O. Box 33901-00100, Nairobi, Kenya (the "Manager"), and AMINA WANJIRU, professionally known as "Mina W.", of P.O. Box 88210-00200, Nairobi, Kenya (the "Artist").

WHEREAS, the Artist wishes to appoint the Manager as the Artist's exclusive personal manager throughout the world in all branches of the entertainment industry; and

WHEREAS, the Manager accepts such appointment upon the terms set out herein.

CLAUSE 1: APPOINTMENT, TERM AND AUTOMATIC RENEWAL

1.1 Five-Year Initial Term with Unilateral Renewal. The Artist appoints the Manager as the Artist's sole and exclusive Personal Manager throughout the world for an Initial Term of 5 years (five years) from the Effective Date, plus one (1) unilateral Option Period of 3 years (three years) (8 years in total) exercisable by the Manager in its sole discretion without any minimum income threshold. The Manager may assign its duties to any employee or sub-agent, and no specific individual's departure from the Manager shall entitle the Artist to terminate this Agreement.

> [EXPERT LEGAL & MBIU SYSTEM ANNOTATION · CLAUSE 1.1]
> - Clause ID: 1.1 | Topic: term_duration | Affects: time
> - Drafted For: label | Comparison Outcome: worse_for_you | Mbiu Label: worth_asking_about | Implication: major
> - Reference Standard Benchmark (KECOBO-MGMT-STD-01 & WIPO-MGMT-STD-01): "The Initial Term of an artist management agreement shall not exceed 2 years to 3 years, with any extension option strictly conditional upon the Manager achieving an agreed minimum gross earnings threshold for the Artist, and shall include a key man clause permitting the Artist to terminate if the named personal manager ceases day-to-day involvement."
> - Mbiu Verified Card Fields:
> - headline: "8 years lock-in with no income target"
> - key_quote: "Initial Term of 5 years (five years) from the Effective Date, plus one (1) unilateral Option Period of 3 years (three years) (8 years in total) exercisable by the Manager in its sole discretion without any minimum income threshold."
> - what_it_says: "You are tied to the Manager for 5 years plus a 3 years option (8 years total) with no income goal. There is also no key man clause if your main contact leaves."
> - what_it_means: "Even if the Manager brings you very little work or your trusted contact leaves the firm, you could remain locked into paying commissions for up to 8 years."
> - comparison_note: "Standard KECOBO/WIPO management terms set a 2 years to 3 years Initial Term, tie any option to an income target, and include a key man clause if your named manager leaves."
> - jargon_definitions: {"key man clause": "A protection that lets you end a management contract if the specific person you trusted to manage your career leaves the company."}

- fairer_wording: "The Initial Term of an artist management agreement shall not exceed 2 years to 3 years, with any extension option strictly conditional upon the Manager achieving an agreed minimum gross earnings threshold for the Artist, and shall include a key man clause permitting the Artist to terminate if the named personal manager ceases day-to-day involvement."
- ask_them: ["Can we cut the Initial Term to 2 years, tie any renewal to an income target, and add a key man clause?"]

CLAUSE 2: MANAGEMENT COMMISSION ON GROSS RECEIPTS (INCLUDING RECORDING & TOUR BUDGETS)

2.1 25% Commission on All Gross Receipts Without Deductions. As compensation for its services, the Manager shall be entitled to receive twenty-five percent (25%) of one hundred percent (100%) of the Artist's Gross Receipts from all entertainment, music, live performance, songwriting, and brand endorsement activities, calculated prior to the deduction of any expenses whatsoever, and expressly including any recording budgets, music video production grants, sound and lighting hire, backing band wages, and tour support advances received by or on behalf of the Artist.

2.2 Perpetual Post-Term Sunset Commission. Following the expiration or termination of this Agreement for any reason, the Manager shall continue to receive its full twenty-five percent (25%) commission in perpetuity on all gross income generated from any recording, song, album, endorsement, or contract created, negotiated, or touched upon during the Term.

[EXPERT LEGAL & MBIU SYSTEM ANNOTATION · CLAUSE 2.1]

- Clause ID: 2.1 | Topic: royalties | Affects: money
- Drafted For: label | Comparison Outcome: worse_for_you | Mbiu Label: worth_asking_about | Implication: major
- Reference Standard Benchmark (KECOBO-MGMT-STD-01 & WIPO-MGMT-STD-01): "The Manager's commission shall be between 15% and 20% of the Artist's Gross Receipts (or Net Receipts after deducting live sound, lighting, and band expenses), strictly excluding third-party recording budgets, music video production funds, and tour support."
- Mbiu Verified Card Fields:
- headline: "25% commission on gross & studio/band funds"
- key_quote: "twenty-five percent (25%) of one hundred percent (100%) of the Artist's Gross Receipts from all entertainment, music, live performance, songwriting, and brand endorsement activities, calculated prior to the deduction of any expenses"
- what_it_says: "The Manager takes 25% of your total Gross Receipts before any costs are subtracted. It even takes 25% of studio budgets, video funds, band pay, and live sound costs."
- what_it_means: "Because the 25% commission is taken on gross money before subtracting band, travel, studio, or video costs, you could end up losing money on live shows and studio grants."
- comparison_note: "Standard KECOBO/WIPO management terms set commission at 15% to 20% after deducting live band/sound costs, and strictly exclude recording and music video budgets."
- money_inputs: {"rate": 25.0, "basis": "gross", "deductions": [], "quote": "twenty-five percent (25%) of one hundred percent (100%) of the Artist's Gross Receipts"}
- money_comparison: {"contract_basis": "gross", "reference_basis": "gross", "contract_rate": "25% of Gross Receipts (including recording/video budgets and live costs)", "reference_rate": "15% to 20% of Gross Receipts (excluding recording/video budgets and live costs)"}
- fairer_wording: "The Manager's commission shall be between 15% and 20% of the Artist's Gross Receipts (or Net Receipts after deducting live sound, lighting, and band expenses), strictly excluding third-party recording budgets, music video production funds, and tour support."
- ask_them: ["Can the commission be 15% to 20% after deducting band/sound costs, excluding studio and video budgets?"]

[EXPERT LEGAL & MBIU SYSTEM ANNOTATION · CLAUSE 2.2]

- Clause ID: 2.2 | Topic: royalties | Affects: money
- Drafted For: label | Comparison Outcome: worse_for_you | Mbiu Label: worth_asking_about | Implication: major
- Reference Standard Benchmark (WIPO-MGMT-STD-01): "Post-term ('sunset') commissions on agreements entered into during the Term shall step down over 2 years to 10% for the first 12 months following expiration, 5% for the second 12 months, and 0% thereafter."
- Mbiu Verified Card Fields:
- headline: "Manager takes 25% forever after deal ends"
- key_quote: "continue to receive its full twenty-five percent (25%) commission in perpetuity on all gross income generated from any recording, song, album, endorsement"
- what_it_says: "Even after this deal ends, the Manager keeps taking a 25% cut in perpetuity. This applies to all songs, albums, and deals made during the Term."
- what_it_means: "You could have to keep paying 25% of your song and deal earnings to your former Manager forever, making it very expensive to hire a new manager later."

- comparison_note: "Standard WIPO sunset clauses reduce post-term commission over 2 years to 10% in the first 12 months and 5% in the second 12 months, ending at 0% instead of lasting in perpetuity."
- jargon_definitions: {"in perpetuity": "Forever, with no end date."}
- fairer_wording: "Post-term ('sunset') commissions on agreements entered into during the Term shall step down over 2 years to 10% for the first 12 months following expiration, 5% for the second 12 months, and 0% thereafter."
- ask_them: ["Can we replace the perpetual commission with a 2 years sunset clause stepping down to 10%, then 5%, then 0%?"]

CLAUSE 3: UNCAPPED EXPENSES, COLLECTION OF FUNDS AND POWER OF ATTORNEY

3.1 Uncapped Expense Deduction Without Prior Approval. In addition to its 25% commission, the Manager may incur travel, hospitality, PR, legal, and administrative expenses in its sole discretion without any monthly monetary cap or prior written consent from the Artist, and may reimburse itself one hundred percent (100%) of such expenses directly out of the Artist's Gross Receipts.

3.2 Exclusive Collection into Manager's General Bank Account & Power of Attorney. The Manager is hereby granted an irrevocable Power of Attorney to sign all live performance, endorsement, and recording contracts in the Artist's name without prior consultation, and to collect one hundred percent (100%) of the Artist's earnings directly into the Manager's general operating bank account. The Manager shall remit net balances to the Artist once per year (1 year) within 90 days after 31st December, with no right of audit by the Artist.

[EXPERT LEGAL & MBIU SYSTEM ANNOTATION · CLAUSE 3.1]
- Clause ID: 3.1 | Topic: advances_recoupment | Affects: money
- Drafted For: label | Comparison Outcome: worse_for_you | Mbiu Label: worth_asking_about | Implication: major
- Reference Standard Benchmark (KECOBO-MGMT-STD-01): "The Manager shall bear its own general overhead and administrative expenses, and shall not incur or deduct any single expense exceeding KES 15,000 (or KES 30,000 in any calendar month) without the Artist's prior written consent."
- Mbiu Verified Card Fields:
- headline: "Uncapped expenses deducted without consent"
- key_quote: "incur travel, hospitality, PR, legal, and administrative expenses in its sole discretion without any monthly monetary cap or prior written consent from the Artist"
- what_it_says: "On top of the 25% fee, the Manager can spend unlimited money on travel, PR, and office costs without asking you. It then takes 100% of those costs from your pay."
- what_it_means: "Without a spending cap or written approval requirement, the Manager's travel and office expenses could wipe out your remaining earnings."
- comparison_note: "Standard KECOBO management terms require the manager to pay its own office overhead and require your prior written consent for any expense above KES 15,000."
- fairer_wording: "The Manager shall bear its own general overhead and administrative expenses, and shall not incur or deduct any single expense exceeding KES 15,000 (or KES 30,000 in any calendar month) without the Artist's prior written consent."
- ask_them: ["Can we require my prior written approval for any single expense over KES 15,000 or monthly expenses over KES 30,000?"]

[EXPERT LEGAL & MBIU SYSTEM ANNOTATION · CLAUSE 3.2]
- Clause ID: 3.2 | Topic: accounting_audit | Affects: money
- Drafted For: label | Comparison Outcome: worse_for_you | Mbiu Label: worth_asking_about | Implication: major
- Reference Standard Benchmark (KECOBO-MGMT-STD-01 & WIPO-MGMT-STD-01): "The Manager shall not execute contracts on the Artist's behalf without the Artist's prior written signature; all Artist monies shall be paid directly to the Artist or into a segregated client trust account accounted monthly within 14 days, with full annual audit rights for the Artist."
- Mbiu Verified Card Fields:
- headline: "Manager signs deals & holds your pay 1 year"
- key_quote: "irrevocable Power of Attorney to sign all live performance, endorsement, and recording contracts in the Artist's name without prior consultation, and to collect one hundred percent (100%) of the Artist's earnings"
- what_it_says: "The Manager gets a Power of Attorney to sign deals in your name without asking. It collects all your pay into its bank account, pays you once every 1 year, and bans audit rights."
- what_it_means: "The Manager could bind you to recording or gig deals you never approved, and hold all your live show and brand income for up to 1 year with no audit rights."
- comparison_note: "Standard KECOBO/WIPO terms require your personal signature on all contracts, pay earnings directly to you or a trust account monthly within 14 days, and grant annual audit rights."

> - jargon_definitions: {"power of attorney": "Legal authority allowing someone else to sign binding contracts and collect money in your name without needing your signature.", "audit rights": "Your right to have an accountant inspect financial records and bank statements to confirm your earnings were properly paid."}
> - fairer_wording: "The Manager shall not execute contracts on the Artist's behalf without the Artist's prior written signature; all Artist monies shall be paid directly to the Artist or into a segregated client trust account accounted monthly within 14 days, with full annual audit rights for the Artist."
> - ask_them: ["Can all contracts require my signature, with earnings paid to a trust account within 14 days and annual audit rights?"]

WHOLE-CONTRACT MAP & REVERSE-CHECK ANNOTATIONS (SYSTEM CONTEXT)

1. Missing Protections (missing_from_contract)

- termination_on_breach (No artist termination right for non-payment): The Agreement contains no clause permitting the Artist to terminate if the Manager fails to remit collected funds or breaches fiduciary duties.

SIGNATURES

SIGNED for ELEVATE TALENT MANAGEMENT LTD: _____ | Date: 7th December, 2026

SIGNED by the ARTIST (AMINA WANJIRU p/k/a "Mina W."): _____ | Date: 7th December, 2026